RATIO / CASE READING SHEET

Malaysia v. Malaysiakini and Steven Gan

TrialWatch (Clooney Foundation for Justice) | malaysia-v-malaysiakini-and-steven-gan | Malaysia | 2021

Extractive reading sheet | local source passages; no model conclusions

Source excerpts are reading leads, not a case summary or established findings. Read the surrounding passages and identify the speaker before relying on them.

Presumption of innocence wording

[...] l and the right to freedom of expression. First, the proceedings undermined the presumption of innocence. Malaysiakini did not dispute that the impugned comments were insulting. Instead, the central issue in the case was whether Malaysiakini had “published” the comments, raising the question of whether Joan Barata, who is a member of the TrialWatch [...]

Stored text line 61

Charge / offence wording

[...] e rn warrants heightened protection. The United Nations Human Rights Committee, charged with interpreting the ICCPR, has delineated requirements that States must fulfil to restrict protected speech: restrictions must be provided by law – clear enough to ensu re that officials are not afforded unbounded discretion and that individuals [...]

Stored text line 98

Sentencing / detention wording

[...] n for Justice. Its mission is to expose injustice, help to free those unjustly detained and promote the rule of law around the world. TrialWatch monitors criminal trials globally against those who are most vulnerable – including journalists, protesters, women, LGBTQ+ persons and minorities – and advocates for the rights of the [...]

Stored text line 31

Source: https://cfj.org/wp-content/uploads/2023/07/Malaysiakini-and-Steven-Gan_October-2021_Malaysia_Fairness-Report.pdf

Source text SHA-256: 0426b08cc7608e76 | Saved original available in the local case library